

AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT				1. CONTRACT ID CODE J		PAGE 1 OF 6 PAGES	
2. AMENDMENT/MODIFICATION NUMBER 0002		3. EFFECTIVE DATE 25 AUG 2025		4. REQUISITION/PURCHASE REQUISITION NUMBER		5. PROJECT NUMBER (If applicable) 107603	
6. ISSUED BY W2SD ENDIST NEW ENGLAND KO CONTRACTING DIVISION, 696 VIRGINIA ROAD CONCORD, MA 01742-2751 UNITED STATES ANN ADLEY, EMAIL: ANN.M.ADLEY@USACE.ARMY.MIL TELEPHONE: 978-318-8255		CODE W912WJ		7. ADMINISTERED BY (If other than Item 6) SCD: PAS:		CODE	
8. NAME AND ADDRESS OF CONTRACTOR (Number, street, county, State and ZIP Code)				(X)		9A. AMENDMENT OF SOLICITATION NUMBER W912WJ25BA020	
				☒		9B. DATED (SEE ITEM 11) 07 AUG 2025	
				☐		10A. MODIFICATION OF CONTRACT/ORDER NUMBER	
				☐		10B. DATED (SEE ITEM 13)	
CODE		FACILITY CODE					

11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS

☒ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☐ is extended. ☒ is not extended.

Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended, by one of the following methods:
 (a) By completing items 8 and 15, and returning 1 copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted;
 or (c) By separate letter or electronic communication which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER.
 If by virtue of this amendment you desire to change an offer already submitted, such change may be made by letter or electronic communication, provided each letter or electronic communication makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.

12. ACCOUNTING AND APPROPRIATION DATA (If required)
 SEE SECTION G - CONTRACT ADMINISTRATION DATA

**13. THIS ITEM APPLIES ONLY TO MODIFICATIONS OF CONTRACTS/ORDERS.
IT MODIFIES THE CONTRACT/ORDER NUMBER AS DESCRIBED IN ITEM 14.**

CHECK ONE	A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: (Specify authority) THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NUMBER IN ITEM 10A.
☐	
☐	B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES (such as changes in paying office, appropriation data, etc.) SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b).
☐	C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:
☐	D. OTHER (Specify type of modification and authority)

E. IMPORTANT: Contractor ☐ is not ☐ is required to sign this document and return _____ copies to the issuing office.

14. DESCRIPTION OF AMENDMENT/MODIFICATION (Organized by UCF section headings, including solicitation/contract subject matter where feasible.)
 AMENDMENT 002 IS NECESSARY TO UPDATE THE WAGE DETERMINATION.

Except as provided herein, all terms and conditions of the document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.

15A. NAME AND TITLE OF SIGNER (Type or print)		16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print) ERIN E. BRADLEY	
15B. CONTRACTOR/OFFEROR	15C. DATE SIGNED	16B. UNITED STATES OF AMERICA (Signature of Contracting Officer)	16C. DATE SIGNED 03 SEP 2025
(Signature of person authorized to sign)			

SECTION SF 30 BLOCK 14 CONTINUATION PAGE

SUMMARY OF CHANGES

Section 00 70 00 - Conditions of the Contract

Miscellaneous text in this section has been modified to:

INSURANCE REQUIRED

In accordance with CONTRACT CLAUSE titled "INSURANCE - WORK ON A GOVERNMENT INSTALLATION" the Contractor shall procure and maintain during the entire period of his performance under this contract the following kinds and minimum amounts of insurance:

TYPE

AMOUNT

Workmen's Compensation and
Employers'
\$100,000

Not less than

Liability Insurance

The Contractor shall comply with all applicable
Workmen's Compensation Statutes and shall
furnish evidence of Employers' Liability Insurance.

General Liability

Insurance

\$500,000 per accident

Bodily injury liability insurance on the
comprehensive form of policy.

Minimum limits of

Automobile Liability

Insurance

per person and

Damage liability insurance on the
comprehensive
accident

Minimum limits of \$200,000

form of policy and shall cover the operation of all
per accident for property damage)
automobiles used in performance of the contract.

\$500,000 per

(\$20,000

VETERANS EMPLOYMENT INFO

Veterans Employment Emphasis for U.S. Army Corps of Engineers Contracts

In addition to complying with the requirements outlined in FAR Part 22.13, FAR Provision 52.22238, FAR Clause 52.22235, FAR Clause 52.22237, DFARS 222.13 and Department of Labor regulations, U.S. Army Corps of Engineers (USACE) contractors and subcontractors at all tiers are

encouraged to promote the training and employment of U.S. veterans while performing under a USACE contract. While no set aside, evaluation preference, or incentive applies to the solicitation or qualified veterans to perform performance under the resultant contract, USACE contractors are encouraged to seek out highly services under this contract. The following resources are available to assist USACE contractors in their outreach efforts:

-U.S. Department of Labor Veterans' Employment and Training Service (VETS): <https://www.dol.gov/vets/>

-Federal Veteran Employment Information: <https://www.fedshirevets.gov/>

-Veterans Opportunity to Work (VOW) Program: <https://www.benefits.va.gov/vow/>

-U.S. Army Warrior Transition Command Employment Index: <https://wct.army.mil/modules/employers/index.html>

-Hiring Our Heroes: <https://www.uschamberfoundation.org/hiring-our-heroes>

AT-OPSEC

General security requirements and guidance: The security requirements described below apply to all contract personnel (including employees of the prime Contractor ("Contractor") and all subcontractor employees) supporting the performance requirements of this contract. The Contractor is responsible for compliance with these security requirements. Questions regarding security matters shall be addressed to the designated Government representative (eg., Contracting Officer Representative (COR), Requiring Activity (RA) representative, or Contracting Officer (if a COR or other RA representative is not appointed)). Contract personnel are critical to the overall security and safety of US Army Corps of Engineers (USACE) installations, facilities and activities, and security awareness training contributes to those efforts. The Department of Defense (DoD) and Army security training requirements specified below, if applicable, are performance requirements; all applicable contract personnel shall complete initial training within 30 days of contract award or the date new contract personnel begin performance on the contract. Within five business days from the completion of training, the Contractor shall provide written documentation (e.g., email or memorandum) to the Government representative. The documentation shall include the names of contract personnel trained and which training they completed; the Contractor shall maintain training records as part of their contract files and be prepared to provide copies of training certificates to the Government representative. Contractor personnel and vehicles are subject to search when entering federal installations. Additionally, all contract personnel shall comply with Force Protection Condition (FPCON) measures, Random Antiterrorism Measures (commonly referred to as "RAMs"), and Health Protection Condition (HPCON) measures. The Contractor is responsible for meeting performance requirements during elevated FPCON and/or HPCON levels in accordance with applicable RA plans and procedures -this includes identifying mission essential and non-mission essential personnel. In addition to the changes otherwise authorized by the changes clauses of this contract, should FPCON or HPCON levels at any individual facility or installation change, the Government may implement security changes that affect contract personnel. The Contractor shall ensure all contract personnel are aware of their security responsibilities, including any site-specific requirements identified in local policies or procedures.

Suspicious Activity Reporting training (e.g. iWATCH, CorpsWatch, or See Something, Say Something): All contract personnel shall receive initial and annual refresher training from the RA representative on the local suspicious activity reporting program. This locally developed training provides contract personnel with general information on suspicious behavior, and guidance on reporting suspicious activity to the project manager, security representative or law enforcement entity.

Pre-screen candidates using E-Verify Program: Contractors shall comply with the requirements set forth in FAR clause 52.222-54 Employment Eligibility Verification and FAR Subpart 22.18 in using the E-Verify Program at (<https://www.e-verify.gov/>) (website subject to change) to meet the contract employment eligibility requirements. Contractors are encouraged to cooperate with Federal and State agencies responsible for enforcing labor requirements to include eligibility for employment under United States immigration laws in accordance with FAR 22.102-1(i). An initial list of verified/eligible candidates shall be provided to the COR no later than three business days after the initial contract award. When contracts are with individuals, the individuals will be required to complete a Form I-9, Employment Eligibility Verification, and submit it to the Contracting Officer to become part of the official contract file.

CONTRACTOR EVALUATION

CONTRACTOR PERFORMANCE EVALUATIONS (CPARS)

In accordance with the provisions of Subpart 36.201 (Evaluation of Contractor Performance) of the Federal Acquisition Regulation (FAR), construction Contractor's performance shall be evaluated throughout the performance of the contract. The United States Army Corps of Engineers (USACE) follows the procedures outlined in Engineering Regulation 415-1-17 to fulfill this FAR requirement. For construction contracts awarded at or above \$750,000.00, the USACE will evaluate contractor's performance annually and at completion and prepare a performance report using the Contractor Performance Assessment Reporting System (CPARS), which is now a web based system. After an evaluation (interim or final) is written up by the USACE, the Contractor will have the ability to access, review and comment on the evaluation for a period of 60 days. Accessing and using CPARS typically requires specific software, called PKI certification, which is installed on the user's computer. However, although users are encouraged to use PKI certificates whenever possible, a waiver has been approved to allow industry users to access the system without a PKI certificate.

Contractors wishing to log on without a PKI certificate should select the "Contractor (pending PKI)" logon option.

The certification is a Department of Defense item and was implemented to provide security in electronic transactions. The certification software could cost approximately \$110 - \$125 per certificate per year and is purchased from an External Certificate Authorities (ECA) vendor. Current information about the PKI certification process and for contacting vendors can be found on the web site: <http://www.cpars.gov/>. If the Contractor wishes to participate in the performance evaluation process, access to CPARS and PKI certification is the sole responsibility of the Contractor.

WEATHER DELAYS

TIME EXTENSIONS FOR UNUSUALLY SEVERE WEATHER

a. This provision specifies the procedure for the determination of time extensions for unusually severe weather in accordance with the CONTRACT CLAUSE entitled "DEFAULT (FIXED PRICE CONSTRUCTION)." In order for the Contracting Officer to award a time extension under this clause, the following conditions must be satisfied.

(7) The weather experienced at the project site during the contract period must be found to be unusually severe, that

is, more severe than the adverse weather anticipated for the project location during any given month.

(8) The unusually severe weather must actually cause a delay to the completion of the project. The delay must be

beyond the control and without the fault or negligence of the Contractor.

b. The following schedule of monthly anticipated adverse weather delays is based on National Oceanic and

Atmospheric Administration (NOAA) or similar data for the project location and will constitute the baseline for

monthly weather time evaluations. The Contractor's progress schedule must reflect these anticipated adverse

weather delays in all weather dependent activities.

MONTHLY ANTICIPATED ADVERSE WEATHER DELAY WORK DAYS BASED ON 5 DAY WORK WEEK

January February March April May June

9 7 5 3 1 1

July August September October November December

1 1 1 2 5 7

c. Upon acknowledgment of the Notice to Proceed (NTP) and continuing throughout the contract, the Contractor

will record on the daily CQC report, the occurrence of adverse weather and resultant impact to normally scheduled

work. Actual adverse weather delay days must prevent work on critical activities for 50 percent or more of the

Contractor's scheduled workday. The number of actual adverse weather delay days shall include days impacted by

actual adverse weather (even if adverse weather occurred in previous month), be calculated chronologically from the

first to the last day of each month and be recorded as full days. If the number of actual adverse weather delay days

exceeds the number of days anticipated in paragraph b, above, the Contracting Officer will convert any qualifying

delays to calendar days, giving full consideration for equivalent fair weather workdays, and issue a DEFAULT

(FIXED PRICE CONSTRUCTION)."

WAGE DETERMINATION

The Wage Determination for this project can be found at:

<https://sam.gov/wage-determination/MA20250015/4>

Wage Determination No.: MA20250015

Modification No.: 4

Date Published: August 15, 2025

Section 01 00 00 - General Requirements

The Requirements text has been modified to:

Amendment 002 is necessary to update the Wage Determination.